



# **THE KENYA GAZETTE**

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GAZETTE NOTICE No. 3391

## **THE CONSTITUTION OF KENYA**

### **THE ELECTIONS ACT**

*(Cap. 7)*

### **THE ELECTION (GENERAL) REGULATIONS**

*(L.N. 128 of 2012 and L.N. 72 of 2012)*

**BY-ELECTIONS FOR MEMBER OF COUNTY ASSEMBLY FOR PORRO WARD IN SAMBURU WEST CONSTITUENCY, SAMBURU COUNTY AND ENDO WARD IN MARAKWET EAST CONSTITUENCY- ELGEYO/MARAKWET COUNTY AND MEMBER OF NATIONAL ASSEMBLY, EMURUA DIKIRR CONSTITUENCY, NAROK COUNTY SCHEDULED TO BE HELD ON THURSDAY, 14TH MAY, 2026.**

IN EXERCISE of the powers conferred by Articles 84, 85, 88 (4), 97 (1) (a), 99, 101 (4), 103 (1) (a), 177 (1) (a) and 194 (1) (d) of the Constitution of Kenya, sections 5 (1) (b), 13 (3), 16, 19, 24, 25, 28, 32, 33, 38, 43 (5A) and 74 of the Elections Act, 2011 and Regulations 11 (4) and (6), 12 (1), 13A, 13B, 14, 15, 98 and Parts V, VIII and IX of the Election (General) Regulations, 2012, the Independent Electoral and Boundaries Commission gives notice that:

- (a) Following the declaration of vacancies that occurred in the offices of Member of County Assembly for Porro Ward, Samburu West Constituency, Samburu County on 5th January, 2026, Endo Ward, Marakwet East Constituency, Elgeyo/Marakwet County on the 27th January, 2026 and Member of National Assembly for Emurua Dikirr Constituency, Narok County on the 10th March, 2026 and notices issued by the respective Speakers, there shall be by-elections in the above listed electoral areas on Thursday, the 14th May, 2026.
- (b) A public officer who intends to contest in the by-elections shall resign from public office within seven (7) days of the declaration of vacancy.
- (c) Candidates intending to participate in the by-elections as independent candidates shall not have been members of any political party at least three (3) months immediately before the date of the by-elections.
- (d) Each political party intending to participate in the by-elections shall submit the names of the persons contesting in a party primary and the date of the party primary on or before Wednesday, the 25th March, 2026.

- (e) The Commission shall publish, in the Gazette, the names of the persons contesting in a party primary and the date of the party primary within seven (7) days of receipt of the names of the candidates.
- (f) New fully registered political parties and those that have revised their membership list post submission of certified list to the Commission and intend to participate in the by-elections are required to submit their certified membership lists on or before Wednesday, the 25th March, 2026.
- (g) Candidates intending to participate in the by-elections as independent candidates shall submit their names and symbols that they intend to use during the by-elections for purposes of nomination of independent candidates to the Commission on or before Wednesday, the 25th March, 2026.
- (h) The Commission shall publish in the Gazette, the names and symbols of persons intending to contest in the by-elections as independent candidates within seven (7) days of receipt of the names of the candidates.
- (i) Each political party intending to participate in the by-elections shall submit the names and specimen signatures of the authorized persons on or before Wednesday, the 25th March, 2026.
- (j) Political parties intending to present candidates in the by-elections through indirect nominations shall submit the list of persons nominated to contest in the by-elections to the Commission on or before Tuesday, the 7th April, 2026.
- (k) A political party intending to present candidates in the by-elections shall, after its party primaries resolve all intra-party disputes and submit the list of nominated persons to contest in the by-elections to the Commission on or before Tuesday, the 7th April, 2026.
- (l) The days for the Commission nomination of political party and independent candidates for the by-elections shall be on Wednesday, the 15th April, 2026 and, Thursday, the 16th April, 2026 and the nomination papers shall be delivered by the candidates to the respective Returning Officer between the hours of eight o'clock in the morning and one o'clock in the afternoon and between the hours of two o'clock and four o'clock in the afternoon at the place designated by the Commission.
- (m) Disputes relating to or arising from the Commission's nomination shall be lodged with the Commission within twenty-four hours of the occurrence of the dispute and, in any event, not later than Friday, the 17th April, 2026.

- (n) Disputes relating to or arising from the Commission's nomination shall be determined within ten (10) days of the lodging of the dispute with the Commission and in any event, not later than Saturday, the 25th April, 2026.
- (o) The campaign period for purposes of Thursday, the 14th May, 2026 by-elections shall commence on Wednesday, the 15th April 2026 and cease on Monday, the 11th May 2026 being forty-eight (48) hours before the By-Election Day.
- (p) The Campaign time shall run from 7.00 a.m. to 6.00 p.m. each day during the campaign period.
- (q) Participating political parties and independent candidates shall appoint and submit to the Commission the name of one Constituency Election Agent and polling station agents on or before Thursday, the 30th April, 2026.
- (r) For purposes of the Thursday, the 14th May, 2026 by-elections for Porro Ward in Samburu West Constituency, Samburu County and Endo Ward in Marakwet East Constituency, Elgeyo/Marakwet County and Emurua Dikirr Constituency, Narok County the registration and revision of the register of voters is suspended until Friday, the 12th June, 2026.
- (s) If the elections are contested, the poll will take place on Thursday, the 14th May, 2026 in the respective listed electoral areas.

*Notes:*

1. The attention of candidates and persons subscribing nomination papers is drawn to the provisions of Parts V, VIII and IX of the Election (General) Regulations, 2012, section 13 (2) and the First Schedule to the Leadership and Integrity Act, and Chapter Six of the Constitution of Kenya.

2. Every political party, candidate and every person who participates in the election shall subscribe to and observe the Electoral Code of Conduct set out in the Second Schedule to the Elections Act.

3. Disputes relating to or arising from nominations shall be heard and determined at a venue specified by the Commission.

4. The Rules of Procedure on Settlement of Disputes may be accessed on the Commission's website, <https://www.iebc.or.ke/uploads/resources/902SFZiDqt.pdf>

5. The nomination disputes arising from Commission nomination process shall be filed with the Commission either physically at Anniversary Towers or via email [info@iebc.or.ke](mailto:info@iebc.or.ke) or [ppl@iebc.or.ke](mailto:ppl@iebc.or.ke).

6. The Statutory Complaint Form is accessible on the Commission's website, <https://www.iebc.or.ke/uploads/resources/GvxDOTUuE2.pdf>.

7. A person guilty of an election offence will be liable to the penalties imposed by the Election Offences Act, the disqualifications imposed thereof and the Constitution of Kenya.

8. The attention of candidates and political parties is drawn to the provisions of section 43 (5A) of the Elections Act, on resignation of public officers.

9. The attention of candidates is drawn to the provisions of section 26 of the Elections Act, on public fundraising or harambee.

Dated the 13th March, 2026.

ERASTUS EDUNG ETHEKON,  
Chairperson,  
Independent Electoral and Boundaries Commission.

GAZETTE NOTICE NO. 3392

THE CONSTITUTION OF KENYA  
THE INDEPENDENT ELECTORAL AND BOUNDARIES COMMISSION ACT  
(Cap. 7C)  
THE ELECTIONS ACT  
(Cap. 7)  
THE ELECTION (GENERAL) REGULATIONS  
(L.N. 128 of 2012 and L.N. 72 of 2012)

APPOINTMENT OF RETURNING AND DEPUTY RETURNING OFFICERS FOR PURPOSES OF CONDUCTING THE BY-ELECTIONS FOR MEMBER OF COUNTY ASSEMBLY FOR PORRO WARD IN SAMBURU WEST CONSTITUENCY, SAMBURU COUNTY AND ENDO WARD IN MARAKWET EAST CONSTITUENCY, ELGEYO/MARAKWET COUNTY, MEMBER OF NATIONAL ASSEMBLY EMURUA DIKIRR CONSTITUENCY, NAROK COUNTY, SCHEDULED TO BE HELD ON THURSDAY, 14TH MAY, 2026.

IN EXERCISE of the powers conferred by Articles 88 (4), 177 (1) (a) 193 and 194 (1) (a) of the Constitution, section 11 of the Independent Electoral and Boundaries Commission Act, 2011, Sections 38, 39(1) and (1A) of the Elections Act, 2011 and Regulations 3 of the Elections (General) Regulations, 2012, the Independent Electoral and Boundaries Commission appoints the Returning and Deputy Returning Officers named in the 8th and 9th Columns of the Schedule for purposes of conducting the by-elections scheduled to be held on Thursday, 14th May 2026.

SCHEDULE

| County Code | County Name     | Const. Code | Const. Name   | CAW Code | County Assembly Ward Name | Designation              | Surname    | Other Names     | ID No.   |
|-------------|-----------------|-------------|---------------|----------|---------------------------|--------------------------|------------|-----------------|----------|
| 033         | Narok           | 178         | Emurua Dikirr | -        | -                         | Returning Officer        | Gekonde    | Siriba Caleb    | 12****39 |
| 033         | Narok           | 178         | Emurua Dikirr | -        | -                         | Deputy Returning Officer | Jepchumba  | Sylvia          | 25****18 |
| 025         | Samburu         | 133         | Samburu West  | 0665     | Porro                     | Returning Officer        | Leleruk    | Sophina Ntikwa  | 25****75 |
| 025         | Samburu         | 133         | Samburu West  | 0665     | Porro                     | Deputy Returning Officer | Lowoyatir  | Shadrack Loyala | 30****25 |
| 028         | Elgeyo/Marakwet | 147         | Marakwet East | 0733     | Endo                      | Returning Officer        | Leparmarai | Dominic Kapiri  | 24****07 |
| 028         | Elgeyo/Marakwet | 147         | Marakwet East | 0733     | Endo                      | Deputy Returning Officer | Epur       | Elijah Disii    | 23****50 |

Dated the 13th March, 2026.

ERASTUS EDUNG ETHEKON,  
Chairperson, Independent Electoral and Boundaries Commission.